

Form 72B

JOINT PETITION FOR DIVORCE

IN THE COURT OF KING'S BENCH OF NEW BRUNSWICK
FAMILY DIVISION
JUDICIAL DISTRICT OF _____

Court File Number

BETWEEN:

_____ PETITIONER

and

_____ JOINT PETITIONER

Signed and sealed for the Court of King's Bench at
Fredericton by the Deputy Registrar of the Court at
Fredericton on the ____ day of _____, ____.

X

DEPUTY REGISTRAR

JOINT PETITION FOR DIVORCE (FORM 72B)

(Strike out portions that are not applicable.)

CLAIM

1 The petitioner and the joint petitioner jointly seek:

1(a) a divorce;

1(b) under the *Divorce Act*:

(i)

(ii)

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(iii)

(iv)

(v)

1(c) under the *Martial Property Act*:

(i)

(ii)

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(iii)

(iv)

(v)



State precisely everything you want the Court to include in the divorce judgment. Everything you want to include must have been agreed to by both spouses. If child support is sought, set out the number of children under the age of majority, the number of children over the age of majority and the nature and amount of any special expenses. If you want to include provisions of a domestic contract, separation agreement, minutes of settlement, parenting plan, previous court order or any other document in the divorce judgment, attach a copy of the document and refer to the specific provisions to be included.

GROUND S

- 2 There has been a breakdown of the marriage by reason of the fact that the spouses have lived separate and apart since the ____ day of _____, ____ and are now living separate and apart.

RECONCILIATION

- 3(a) There is no possibility of reconciliation of the spouses.

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3(b) (Where applicable) The following efforts to reconcile have been made:

PARTICULARS OF MARRIAGE

 Attach a marriage certificate or explain its absence.

4(a) The petitioner and joint petitioner were married on the _____ day of _____, _____, at _____.
(place of marriage)

4(b) The petitioner's last name at birth was _____.

4(c) The joint petitioner's last name at birth was _____.

4(d) The petitioner's last name on the day before this marriage (if different than at birth) _____.

4(e) The joint petitioner's last name on the day before this marriage (if different than at birth) _____.

4(f) The petitioner's given names on the day before this marriage _____.

4(g) The joint petitioner's given names on the day before this marriage: _____.

4(h) The petitioner's gender on the day before this marriage:
☐ Male ☐ Female ☐ Another Gender

4(i) The joint petitioner's gender on the day before this marriage:
☐ Male ☐ Female ☐ Another Gender

4(j) The marital status of the petitioner and the joint petitioner on the day before this marriage was:
petitioner _____.
joint petitioner _____.

4(k) The petitioner was born on the _____ day of _____, _____.

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4(l) The joint petitioner was born on the _____ day of _____, _____.

RESIDENCE AND JURISDICTION

5(a) The petitioner resides at _____ in the Province of _____.

5(b) The joint petitioner resides at _____ in the Province of _____.

5(c) *(Check the appropriate box)*

- ☐ The petitioner has been
☐ The joint petitioner has been
☐ Both the petitioner and the joint petitioner have been

habitually resident in the Province of New Brunswick for at least one year immediately preceding the date of the commencement of this proceeding.

CAPACITY

6 Both the petitioner and the joint petitioner are of the full age of 19 years and neither of them suffers from any legal disability.

CHILDREN

7(a) The following are all the living children of the marriage as defined by the *Divorce Act*:

Full Name	Birth date	School and grade or year	Person(s) with whom the child lives
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____

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The children habitually reside in *(municipality and province, state or country)*:

7(b) The petitioner and the joint petitioner seek a parenting order on consent with respect to the following children on the following terms: *(Be sure that this claim agrees with the claim under clause 1(b).)*

Name of child	Terms of the order
---------------	--------------------

7(c) The petitioner and the joint petitioner are not seeking a parenting order and

- ☐ are content that a previous parenting order continue in force, or
- ☐ are attempting to obtain a parenting order in another proceeding, full particulars of which are as follows:

Name of court: _____

Court file number: _____

Particulars of the order or proceeding:

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- 7(d)** The petitioner and the joint petitioner seek an order on consent to have parenting time allocated under a parenting order with respect to the following children on the following terms: *(Be sure that this paragraph agrees with the claim under clause 1(b).)*

Name of child

Terms of the order

-
- 7(e)** The following is the existing schedule of parenting time for the spouse who does not have the children living with him or her. *(Give details such as days of the week, hours and location.)*

-
- 7(f)** The above schedule of parenting time is

- ☐ satisfactory
☐ not satisfactory

(If not satisfactory, give reasons and describe how the schedule should be changed.)

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7(g) The order sought in clause (b) or (d) is in the best interests of the children for the following reasons:

7(h) The following changes in the circumstances of the spouses are expected to affect the children and the parenting time and decision-making responsibility with respect to the children in the future:

7(i) The existing arrangements between the petitioner and the joint petitioner for support for the children are as follows:

Amount paid	Time period (weekly, monthly, etc.)	Paid by (petitioner or joint petitioner)	Paid for (name of child)

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7(j) The existing support arrangements

☐ are being honoured.

☐ are not being honoured.

(If not being honoured, specify how much is unpaid and for how long. If you are agree on an order for payment of part or all of the unpaid amount, be sure to include it in the claim under clause 1(b).)

7(k) The petitioner and the joint petitioner propose that the support arrangements for the children should be as follows: *(Be sure that this claim agrees with the claim under clause 1(b).)*

Amount to be paid	Time period (weekly, monthly, etc.)	To be paid by (petitioner or joint petitioner)	To be paid for (name of child)

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7(k.1) The nature and amount of any special expenses are as follows:

Nature of special expense	Amount to be paid	Time period (weekly, monthly, etc.)	To be paid by (petitioner or joint petitioner)	To be paid for (name of child)

7(l) The educational needs of the children

- ☐ are being met
☐ are not being met

(If not being met, give particulars.)

OTHER COURT PROCEEDINGS

8 If you are applying for a parenting order or an order for child support or spousal support, you will need to tell the court about:

- any criminal or child protection cases or orders that involve you or your spouse, or
- any restraining or protection orders or applications against one of you.

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The judge will use this information to help ensure that any orders made under the *Divorce Act* do not conflict with other orders or proceedings.

The following are all other court proceedings involving one or both parties to this proceeding or any child of the marriage: *(Give the name of the court, the court file number, the kind of order the court was asked to make and what order, if any, the court made. If the proceeding is not yet completed, give its current status.)*

DOMESTIC CONTRACTS, SEPARATION AGREEMENTS, MINUTES OF SETTLEMENT OR OTHER FINANCIAL ARRANGEMENTS AND PARENTING PLANS

9(a) The spouses have entered into the following domestic contracts, separation agreements, minutes of settlement or other written or oral financial arrangements:

 *(Give particulars and attach copies. State whether the arrangements are now in effect. If support payments have not been paid in full, state the amount that has not been paid.)*

Date	Nature of arrangement
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9(b) The spouses have agreed to a parenting plan.

 *Attach a copy.*

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NO COLLUSION

10 There has been no collusion in relation to this divorce proceeding.

DECLARATIONS OF PETITIONER AND JOINT PETITIONER

11 The petitioner and the joint petitioner propose that this proceeding be tried at

(judicial district)

12(a)

☐ I have read and understand this Joint Petition for Divorce. The statements in it are true, to the best of my knowledge, information and belief.

12(b)

☐ I understand that I have the right to seek independent legal advice concerning this proceeding and to retain my own separate counsel.

12(c)

☐ I am aware that no application for a division of property under the *Marital Property Act* shall be made later than 60 days after a divorce takes effect except under the circumstances set out in subsection 3(4) of the *Marital Property Act*.

12(d)

☐ I certify that I am aware of my duties under sections 7.1 to 7.5 of the *Divorce Act*.

Date: _____

SIGNATURE OF PETITIONER

Name of petitioner: _____

Address: _____

Telephone number: _____

Fax number: _____

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Date: _____

SIGNATURE OF JOINT PETITIONER

Name of joint petitioner: _____

Address: _____

Telephone number: _____

Fax number: _____

STATEMENT OF SOLICITOR FOR PETITIONER

(Strike out this paragraph if petitioner has not retained a solicitor.)

13 I, _____, solicitor for the petitioner,
(name)

certify to this Court that I have complied with the requirements of section 7.7 of the *Divorce Act*. *(Where in the circumstances it would clearly not be appropriate to discuss the matters in subsection 7.7(1) with the petitioner, set out the circumstances.)*

I also certify that I have advised the joint petitioner that he or she has the right to seek independent legal advice and retain separate counsel in the proceeding.

Date: _____

SIGNATURE OF SOLICITOR

Name of solicitor: _____

Address: _____

Telephone number: _____

Fax number: _____

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STATEMENT OF SOLICITOR FOR JOINT PETITIONER

(Strike out this paragraph if petitioner has not retained a solicitor.)

14 I, _____, solicitor for the joint petitioner,
(name)

certify to this Court that I have complied with the requirements of section 7.7 of the *Divorce Act*. (*Where in the circumstances it would clearly not be appropriate to discuss the matters in subsection 7.7(1) with the joint petitioner, set out the circumstances.*)

I also certify that I have advised the petitioner that he or she has the right to seek independent legal advice and retain separate counsel in the proceeding.

Date: _____

SIGNATURE OF SOLICITOR

Name of solicitor:

Address:

Telephone number: _____

Fax number: _____